

ANC
IMAGINATION
STORIES OF SCIENCE AND FANTASY

JULY, 1954 35¢

**TERROR
OUT OF
SPACE**

by Dwight V. Swain



ANC
IMAGINATION
STORIES OF SCIENCE AND FANTASY

JULY, 1954 35¢

**TERROR
OUT OF
SPACE**

by Dwight V. Swain



The Project Gutenberg eBook of The incredible aliens

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The incredible aliens

Author: William Bender

Illustrator: W. E. Terry

Release date: September 25, 2021 [eBook #66380]

Most recently updated: October 18, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/66380

Credits: Greg Weeks, Mary Meehan and the Online Distributed Proofreading Team at <http://www.pgdp.net>

*** START OF THE PROJECT GUTENBERG EBOOK THE
INCREDIBLE ALIENS ***

Narant's personal problem seemed of more importance than his mission as an interstellar investigator. But they combined when he met—

The Incredible Aliens

By William Bender, Jr.

**[Transcriber's Note: This etext was produced from
Imagination Stories of Science and Fantasy**

July 1954

**Extensive research did not uncover any evidence that
the U.S. copyright on this publication was renewed.]**

It was only a tiny dot on the view screen when the military lookout on the armed cruiser identified it as an alien spaceship and sounded the general alert. Technician Ninth Class Narant, chief psychanalyst aboard, studied its approach with a rebellious, almost passionate hope that the impossible was at last going to happen.

Or was it impossible? They were the first men to visit this planetary system. Why couldn't they expect to encounter a truly superior race for a change?

Intently, Narant examined the course of the alien craft. Rather mischievously he hoped the stranger would suddenly adopt evasion tactics showing it had detected their presence in the black void between the 6th and 7th planets of the Star Restus. That would certainly be a sign of superiority! And what a blow to Central Scientific Headquarters back home. The anti-detection shield was one of their proudest accomplishments.

And yet, though still wishful, Narant realized deep in his heart that such hopes were blighted. Illogical and improbable. No people in the Universe could even compare with them. Explorers and merchants and military ships and privateers had prowled all the great planetary systems of the galaxy. They and their technology reigned supreme everywhere. Indeed, the accumulated evidence of their supremacy even formed the irrefutable foundation of Central Scientific's dogma on selective breeding.

"I must ask you to leave the bridge now, doctor." The voice, crisp and authoritative, crackled over Narant's shoulder.

Commander Karsine had entered the control room during Narant's brief reverie in front of the viewing screen. An able and successful combat officer still in his early thirties, Karsine wore the light weight space armor the regulations prescribed for moments of impending action. Even if the enemy blasted a hole in the control room itself, that armor could protect Karsine long enough to save or disintegrate the cruiser, as the case might be.

"Commander," Narant suddenly blurted. "One request. I should like to remain this one time and observe your tactics right here."

"Denied." Karsine explained brusquely that only combat personnel were allowed in the central control room during contact with a strange vessel. "But," he ended, patronizingly, "you can watch from the observation room. When we have made the capture, I'll be happy to review my operations with you."

When we have made the capture. The Commander's abundant self confidence only served to further depress Narant. Out there in the void rode a space vessel of an altogether unknown race. And there was no question in Karsine's mind but that their cruiser would take the alien. Not *"if"* we make the capture. Simply, *"when."* It was small solace for Narant to recall that he himself had firmly established Self Confidence as one of the highest-rated mental traits for military command. It had been one of his major projects as a Psychanalyst 4th Class.

As he left the bridge, the airlock rumbled shut behind him, sealing off the control room from the rest of the ship. Narant climbed the spiral staircase into the observation room. One entire wall was a thick quartzite pane overlooking the control center. You could see as much from up here as down below. But somehow it wasn't the same.

Other technicians with non-combatant specialties were already strapped to seats in the room, prepared to watch the show on which their very lives might depend. The "VM" lamp winked slowly on and off, its orange glow warning against "possible violent maneuvers." Narant found a seat and obediently fastened the safety harness. He studied the view screen on the bridge below. The alien ship, seemingly unaware of the danger that now threatened it, still followed its initial course.

Narant tried to concentrate on the scrambling activity in the control center, but his rebellious mind would have none of it. Unwanted memories rose up to haunt him. He had been assigned to this trip mainly to purge those thoughts from his mind with work and action, but the cure appeared no cure at all.

Three months ago his final request for the marriage permit had returned disapproved. The accompanying explanation had been a masterpiece of

scientific doggerel. It analyzed the genetic composition of Narant and Technician 3rd Class Melda. It presented carefully worked-out Tables of Probability regarding the nature and potential achievement of the offspring of such a union. It called attention to the low probability rate of Melda and Narant begetting a genius. "Therefore," it had concluded, "it is not in the best interests of the intended participants, nor will it serve to build the race, if the aforementioned are joined in matrimony."

There followed a rare bit of sterilized philosophy: "It is to be hoped that each party mentioned in the above will readily find another individual in whom to repose his and her natural emotional interest." Narant felt, with a startling sense of the primeval, that if he should find the person who phrased that report he would delightfully club him to death.

But of course emotionalism was absurd. The whole thing had been handled dispassionately. Certain basic factors had been fed into banks of electronic calculators and, a few micro-seconds later, the resultant statistical data came out. It simply failed to measure up. There was no arguing or quibbling about the results for the calculators were mechanically infallible.

However, Narant had taken one more step: an application for "random mating." But the retention drums of the master calculators had accumulated a far too overwhelming amount of information about the advantages of scientific breeding. So that application, too, had been refused.

And shortly after, Narant found himself assigned to this cruiser bound for Restus. A report that the inhabitants had begun space flight. A distant, but conceivable threat to the security of the home planet. He knew the assignment resulted from some scientific effort to mollify his disappointment. So he left home. But he took with him the forlorn hope that on this voyage, or the next, or the one after that, he would find somewhere in the vast reaches of space an advanced people who still practiced random mating; that he might find them, analyze them and feed that information back to the master calculators. For only by placing hard new facts into the "brain" could there be any chance of changing the decision.

In the sealed combat control center, Commander Karsine finished strapping himself into the anthropometric chair in front of the view screen. A subordinate lowered the master control panel into position. Narant perked up with new interest. A specialist of Karsine's class, he realized, could manipulate that control panel with the consummate skill of a master musician at a great organ. The battery of keys, buttons and switches built into the panel gave Karsine complete domination over the thousands of small engines and servo-mechanisms, tens-of-thousands of electric tubes, and the millions of electrical synapses that comprised the fighting apparatus of the space cruiser.

Abruptly the "VM" sign began flashing more rapidly, its color changing from orange to red. A siren whooped throughout the ship. Karsine's voice, somewhat metallic over the speakers, gave the "Imminent Combat" alert. The ship was going into action.

Narant felt the seat straps pull at his chest. In the view screen below, the alien vessel began to swell rapidly. A low hum permeated the observation room. Narant glanced out the nearest port. Glistening metallic spines were expanding outward from the body of the cruiser. At the tip of each bulged the glowing cone of the force and detection heads, the cruiser's most potent tools of attack and defense.

"Engine room!" Karsine's peremptory voice snapped through the speakers.

"Engine room standing by."

"For ten seconds only, do not ... repeat, do *not* act on manual signal control. This is a test only. Read them off."

"Yes, sir. Reading test signals: Fire eight ... fire six ... fire nine ... fire one ... fire main." The voice paused. "Is that all, sir?"

"The ten seconds are up," reproached Karsine. Henceforth, his every command would have to be acted upon instantly. "Divert seventy per cent of main power supply into armament system."

"Yes, sir."

"Check spinal extension."

"Extended and locked. All force heads burning, Commander." Another voice had answered this time.

"Good." Karsine's brief acknowledgment for an efficient crew. "Activate the combat calculator."

"In action, sir."

There, Narant realized, was another de-humanizing achievement of Central Scientific. Years ago in the war with the repulsive exoskeletal inhabitants of Sirius 13, earth's military commanders had gone into battle with terrible ardor. To destroy the Sirians they had taken frequent, unnecessary risks, and in so doing had sacrificed dozens of brand new combat ships. So a special calculator had been designed for all craft except humble merchantmen. It kept a running check on the enemy's tactics, his power output, his course, speed and relative aggressiveness; it measured the power consumption of its own ship in counteracting enemy weapons, and a score of other factors. Once activated, the "brain" computed the mathematical probabilities of ultimate success at each instant of the battle. If the scale ever tipped in favor of the enemy craft, the calculator instantly selected the best evasion course, fired auxiliary rockets and broke off the engagement.

Narant unconsciously shook his head in disapproval. He wondered if he was getting old? Such efficiency disturbed him more than he cared to admit. Only in the histories, it seemed, could you find those thrilling battles where human ingenuity played the decisive role. Where a handful of courageous men could face outrageous odds and win through to victory by wit and resourcefulness. Yes, only in the histories.

Nowadays warfare, like love, revolved about mathematics and probability curves and trillions of electrons chasing themselves through a maze of wires and throwing switches and making decisions that once had been the prerogative of man alone.

Narant yearned for man's lost freedom to make an honest error.

Suddenly Karsine's harsh voice came blasting over the loudspeaker. "Prepare to grapple!"

Narant glanced quickly out through the port into the black sky. The alien ship, its bright metal reflecting the light of the distant sun, floated a mile

away. Motionless. Or so it seemed against the unchanging stellar background.

It possessed hard sleek lines, pointed nose, flaring tail vanes. Its designers, he guessed, must still be thinking in terms of atmospheric flight. It hardly seemed the type of craft that could cross the broad interstellar reaches; probably had been built simply to plod about its neighboring planets. It must be an early development, for spaceships had never before been detected in the Restus system. More than likely the ship had not even become aware of their presence. Small wonder Karsine had decided to grapple.

The force heads on Narant's side of the cruiser began to shimmer under the surge of power being fed to them. They grew red hot, almost translucent. They would hold fire until the beam became powerful enough to withstand tremendous forces. Sometimes in grappling, an enemy craft had been known to discharge its main rocket batteries in an effort to wrench loose. But any second now....

"Execute grapple!" Karsine ordered.

The cruiser shuddered. Lights dimmed as the force heads sucked at every available bit of power. With a blinding flash, a blue-white ribbon of energy streaked across the mile-wide void to the alien ship. It flicked the nose of the Restus craft, gripped, and swept over the entire hull like a glittering cocoon.

"Tension indicator: Nine-eight-point-eight," reported a too-casual voice over the speaker. "Enemy ship secured."

"Opposing force?"

"Negative."

Karsine cautiously studied his dials, alert for the first sign of a counter-blow. Nothing happened. A minute dragged by. The tension indicators remained constant; detection heads, zero. And then: "Bring it alongside."

The grappling beam slowly began to contract, bringing the alien ship closer. As it passed through the invisibility screen, multi-colored de-action rays focussed upon it, nullifying virtually every weapon known to man.

Narant's hopes dissolved. The emptiness left only an aching futility. As usual, the capture had been simple ... and complete.

"Advance parties prepare to go aboard," commanded the loudspeaker.

A man behind Narant unbuckled his straps, got up and stretched. "Here we go again," he said. And then, to nobody in particular: "I used to get a kick out of investigating strange creatures. Now it's work. Just work."

Narant looked over his shoulder at the cruiser's anthropometrist. He would have to board the ship right behind the combat team, analyze the tools, controls, living conditions of the crew. Perhaps he, too, experienced this ennui of persistent success?

Narant had ended his preparations in the psych-examination chamber by the time they brought the first of the alien people to him. Narant stared in sudden amazement. The creature was humanoid. It had a well-formed head with a squat, shrunk nose and steep brows; there were prehensile arms, and hands with five fingers. But the man was hairy and, Narant winced, immodestly naked.

The humanoid was still in the grip of the paralytic when they took him into the examination chamber and strapped him to the table. Narant judged the alien a little taller, give or take a few inches, than a normal human being. His interest began to perk up. It always did when he could study another creature that had learned to conquer space. For perhaps the first time in three months, thoughts of Melda were over-shadowed by the immediate prospect of exploring the mysteries of an alien mind.

As the attendant came back out of the chamber, Narant secured the door. "How many of them?" he asked.

The attendant shook his head in evident amazement. "Four. I don't know how they do it, but that ship had only a four man crew."

"Impossible," Narant exclaimed.

"That's all there are," the man insisted. "We've covered the whole ship."

"But how could they...?"

"The engineers are working on that now. I heard one of them remark about the great number of automatic controls, but even so ... isn't that one for the book?"

That, Narant agreed, was one for the book. Four men. The space vessels he knew usually held scores of crewmen and specialists to handle the manifold emergencies that arose in flight. His imagination soaring, Narant turned rapidly to begin his experiments.

He started the automatic recorder that would code his findings on a thin strip of tape and then, more excited than usual, began the examination. Inside the chamber, a giant multi-faceted crystal began to rotate slowly in the gimbals which held it suspended from the ceiling. Sharp individual beams of light swept over the face of the alien being on the table. One by one, the lights flickered over him and passed on, each one probing, measuring, comparing with universal norms, and then recording its findings on both dial and tape.

Long before the five-hour examination was over, the hopes of Technician 9th Class Narant far transcended any he had experienced in the past three months. The aliens had almost human potential. They were fun-loving, kindly, clannish. Their resourcefulness *and their ingenuity* were literally unsurpassed.

But then the most amazing fact of all revealed itself: The time-lapse since this race had been entirely primitive was fantastically short. In one brief—almost abrupt—transition, they had gone from jungle to the conquest of space. The mind, the racial background and the obvious achievements of these creatures presented such a picture of rapid advancement as to stagger the imagination.

Once he had transmitted the coded tapes to Central Scientific, Narant sought out the anthropometrist. His lingering doubts vanished when the two compared findings. Everything inside the spaceship had been designed expressly for these strange creatures with the five fingers and the prehensile hands and arms.

As the cruiser finally pointed toward home, Narant was a new man. Of course their information would set the scientific world spinning on its

collective ear. But more important, it would have vast personal significance. According to the crystal, the mating pattern of these surprisingly progressive beings was entirely one of random selection!

Already that data would be digesting inside the master calculators. The knowledge would become a part of all future decisions. Probability rates would change strikingly ... especially those that governed the issuance of "random-mating" licenses. For Narant, the voyage had been a tremendous success.

However, in the space experimental laboratories near the Nevada desert on the third planet of the sun Restus, no such optimism existed.

Twenty-four hours had passed since the S-X-2 had vanished. They had had a precise fix on it as it blistered through the void on an elliptic course that would return it automatically to Earth. Everything had seemed to be going perfectly. All the bugs of the first Spacerocket Experimental had evidently been straightened out in making the "2". And then, some 250-thousand miles beyond Saturn, it had disappeared. Just like that.



Dr. Gordon Basset glanced distastefully at the telephone on his desk. Then he began thumbing through the metropolitan directory for a number. The hands that held the directory were strong, supple. They would have been a revelation to Technician Ninth Class Narant, if he had seen them.

But then Technician Ninth Class Narant himself would have been something of a revelation to Dr. Gordon Basset, what with his twenty claw-like extensors.

Basset found the number, dialed, and waited for the connection.

"Hello, Dr. Farrell? Basset here. I've got bad news on the S-X-2.... No details yet, but the ship has broken contact.... Yes, I must presume it's lost....

I'll file a complete report as soon as possible.... What's that?... I suppose you're right—we'll have the S.P.C.A. on our necks for sacrificing four more test animals. What the hell, they can't expect us to send men on these experimental flights!"

Basset talked for a moment longer and then replaced the phone. He sighed. Another report. Another failure. Another requiem to be written for a lost ship—and four chimpanzees.

*** END OF THE PROJECT GUTENBERG EBOOK THE INCREDIBLE
ALIENS ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.